

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC052794: JOSE PEREZ, et al. vs 711 CDM, LLC, et al.

09/17/2026 in Department 42

Demurrer to First Amended Complaint

Motion: Demurrer to FAC by Oxhead Properties LLC and Robert Alan Lunde dba Lund and Lopez Realtors

Tentative Ruling:

The demurrer to the first amended complaint (FAC) is sustained with leave to amend on the grounds of uncertainty as to the entire FAC. The FAC identifies the time frames at which it is alleged that the four defendants owned the property at issue. (FAC at ¶23). But the pleading is confusing, as there were different Plaintiffs during different time periods and different habitability issues during different time periods. Defendants cannot easily ascertain which Plaintiffs have claims against them and what the basis of each claim is. The complaint should be organized to identify the claims of each Plaintiff as against each Defendant so that each Defendant is on notice of what they are alleged to have done and to whom they are purportedly liable.

The demurrer is overruled on the grounds of failure to state a claim as to the 4th Cause of Action for Intentional Infliction of Emotional Distress (IIED). The IIED allegations are not ambiguous or uncertain and are within the scope of *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903.

The demurrer is sustained with leave to amend as to the adequacy of the pleading of the 5th Cause of Action for Wrongful Eviction. Plaintiffs do not appear to have made any changes responsive to the Court's May 13, 2026, ruling on this issue: "the conditions necessitating vacating the property are not identified, nor do Plaintiffs identify the length of time those conditions were tolerated." This issue is likely to resolve once Plaintiffs address the issue of uncertainty described above.

Amended complaint to be filed and served no later than October 2, 2026. Moving party to give notice.